

STATE OF NEW YORK

4274--B

Cal. No. 1331

2025-2026 Regular Sessions

IN SENATE

February 3, 2025

Introduced by Sen. KAVANAGH -- read twice and ordered printed, and when printed to be committed to the Committee on Elections -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- reported favorably from said committee, ordered to first and second report, amended on second report, ordered to a third reading, and to be reprinted as amended, retaining its place in the order of third reading

AN ACT to amend the election law, in relation to requiring the board of elections in a city with a population of one million or more to provide certain notices prior to a change of polling place

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. Subdivision 2 of section 4-104 of the election law is amended to read as follows:

2. (a) If the board of elections, after designating a polling place, and after sending written notice of such polling place to each registered voter, designates an alternative polling place, it must, at least five days before the next election or day for registration, send by mail a written notice to each registered voter notifying ~~him~~ such voter of the changed location of such polling place. If such notice is not possible the board of elections must provide for an alternative form of notice to be given to voters at the location of the previous polling place.

(b) In a city with a population of one million or more, when the board of elections is notified of the need to change the location of a polling place, such board of elections shall, within five days of receiving such notice, notify by mail the following officials:

(i) the chairpersons of all state party committees;

(ii) the chairpersons of all county party committees in the county in which such polling place is located;

EXPLANATION--Matter in italics (underscored) is new; matter in brackets ~~[-]~~ is old law to be omitted.

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1 (iii) the member of the state assembly representing the district in
2 which such polling place is located;

3 (iv) the state senator representing the district in which such polling
4 place is located;

5 (v) the city councilmember representing the district in which such
6 polling place is located; and

7 (vi) the assembly district leaders for any part of the assembly
8 district whose voters are assigned to such polling place, or, in an
9 assembly district in which district leaders are elected in parts, the
10 district leaders for the part in which the polling place is located.

11 § 2. This act shall take effect immediately.